

Teena Sehgal v. State of U.P. & 2 Others

Allahabad High Court (Lucknow Bench) · Division Bench · 10 April 2026 · 2026 SCC OnLine All 5440 · Writ - C No. 1629 of 2026 · **Writ petition disposed of; connection to be given on part-payment of dues and an indemnity bond**

HEADNOTE

An occupier of a distinct portion of premises (here a daughter-in-law residing on the ground floor, in dispute with her mother-in-law who has shifted to solar power) is entitled to a new domestic electricity connection, but cannot obtain it without paying the electricity dues attributable to that portion. With about Rs. 2.41 lakh pending for the whole premises, the Court fixed the ground-floor liability at Rs. 1,20,000 and directed the petitioner to pay 50% within two weeks and the balance in four monthly instalments, to furnish an Indemnity Bond (Annexure 4.2 of the U.P. Electricity Supply Code, 2005) for her ground-floor residence, and to pay regular bills; on the 50% payment the authority must provide the new connection on completion of formalities.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

Occupier's connection on an indemnity bond, conditioned on clearing the portion's dues

QUESTION

Can an occupier of part of a premises get a new connection despite an owner-occupier dispute and outstanding dues on the whole premises?

HOLDING

Yes, on conditions. The petitioner residing on the ground floor (undisputed) is entitled to a connection, but not without paying the dues attributable to that portion. The Court fixed the ground-floor liability at Rs. 1,20,000 (50% in two weeks, balance in four instalments), required an Indemnity Bond (Annexure 4.2) for her ground-floor residence and payment of regular bills, and directed the authority to provide the new connection on the 50% payment and completion of formalities. ¶ 3-4

LIMITING FACTS

Owner-occupier (mother-in-law/daughter-in-law) dispute with a pending civil suit; mother-in-law on the first floor shifted to solar; about Rs. 2.41 lakh pending for the entire premises.

PRINCIPLE TAGS

clause-4.4-occupant-connection-on-indemnity-bond An occupier of a distinct portion may obtain a connection on an Indemnity Bond (Annexure 4.2) despite an owner-occupier dispute, subject to clearing the dues attributable to that portion. ¶ 3-4

arrears-run-with-the-premises A new connection to a portion of premises is conditioned on payment of the electricity dues attributable to that portion; dues on the premises must be cleared before supply. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — THE OWNER-OCCUPIER CIVIL DISPUTE AND THE EXACT APPORTIONMENT OF DUES

The civil suit between the parties is pending; the Court fixed the ground-floor liability pragmatically at Rs. 1,20,000 without finally adjudicating the apportionment of the total Rs. 2.41 lakh. ¶ 2-3